

CITY OF BALTIMORE
ORDINANCE **26-116**
Council Bill 25-0114

Introduced by: Councilmember Blanchard
Cosponsored by: Councilmembers Parker, Dorsey, Conway, Gray, Bullock, Jones, Glover,
Ramos, and President Cohen
Introduced and read first time: October 27, 2025
Assigned to: Land Use and Transportation Committee
Committee Report: Favorable, with amendments
Council action: Adopted
Read second time: April 27, 2026

AN ORDINANCE CONCERNING

Zoning – Uses – Smoke Shop

FOR the purpose of making smoke shops a conditional use by approval of the Board of Municipal
and Zoning Appeals in all commercial zoning and mixed-use districts; setting use standards
for smoke shops; clarifying a certain measurement methodology; making conforming
changes; and defining certain terms.

BY renumbering

Article 32 - Zoning
Sections 1-313(m) to ~~(w)~~ (w), and 14-337 to 14-340, and 18-702, respectively
to be
Section 1-313(n) to ~~(x)~~ (x), and 14-338 to 14-341, and 18-703, respectively
Baltimore City Code
(Edition 2000)

BY adding

Article 32 - Zoning
Sections 1-313(m), 14-337, ~~and 15-305~~ 15-305, and 18-702
Baltimore City Code
(Edition 2000)

BY repealing and re-ordaining

Article 32 - Zoning
Tables 7-202, 8-301, 9-301, 10-301, 11-301, 12-301, 12-402, 12-501, 12-601, 12-1302, and
12-1403
Baltimore City Code
(Edition 2000)

EXPLANATION: CAPITALS indicate matter added to existing law
[Brackets] indicate matter deleted from existing law
Underlining indicates matter added to the bill by amendment
~~Strike-out~~ indicates matter stricken from the bill by
amendment or deleted from existing law by amendment

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SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE, That Sections 1-313(m) to ~~(w)~~ and (w), 14-337 to 14-340, and 18-702, respectively, of Article 32 Zoning of the Baltimore City Code be renumbered to be Sections 1-313(n) to ~~(x)~~ (x), and 14-338 to 14-341, and 18-703, respectively.

SECTION 2. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE, That the Laws of Baltimore City read as follows:

Baltimore City Code

Article 32. Zoning

Title 1. General Provisions

Subtitle 3. Definitions

§ 1-313. "Roofline" to "Substantial construction".

(M) SMOKE SHOP.

"SMOKE SHOP" MEANS A RETAIL ESTABLISHMENT THAT:

(1) IS PRIMARILY ENGAGED IN THE RETAIL SALE OR ON-SITE CONSUMPTION OF TOBACCO PRODUCTS, TOBACCO SMOKING ACCESSORIES, ANY DEVICE OR PARAPHERNALIA THAT CAN BE USED TO DELIVER NICOTINE OR OTHER SUBSTANCES, INCLUDING CANNABIS, TO THE INDIVIDUAL INHALING FROM THE DEVICE, OR ANY CARTRIDGE, COMPONENT, OR ACCESSORY OF THE DEVICE; AND

(2) OPERATES UNDER 1 OR MORE OF THE FOLLOWING LICENSES ESTABLISHED BY THE STATE BUSINESS REGULATION ARTICLE:

(i) OTHER TOBACCO PRODUCTS (OTP) RETAILERS, AS ESTABLISHED BY § 16.5-201 ("LICENSES REQUIRED RELATING TO TOBACCO PRODUCTS");

(ii) ELECTRONIC SMOKING DEVICES RETAILER, AS ESTABLISHED BY § 16.7-201 ("LICENSE REQUIRED");

(iii) VAPE SHOP VENDOR, AS ESTABLISHED BY § 16.7-201 ("LICENSE REQUIRED"); OR

(iv) A CIGARETTE BUSINESS LICENSE, AS ESTABLISHED BY TITLE 16 ("CIGARETTES"); AND

(3) DEVOTES 10% OR MORE OF ITS GROSS RETAIL FLOOR AREA TO THE COMBINED TOTAL OF:

(i) OTHER TOBACCO PRODUCTS, AS DEFINED BY § 16.7-101(C) OF THE STATE BUSINESS REGULATION ARTICLE; AND

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(II) ELECTRONIC SMOKING DEVICES, AS DEFINED BY § 16.7-201 {"LICENSE REQUIRED"} OF THE STATE BUSINESS REGULATION ARTICLE.

(I) "SMOKE SHOP" MEANS A RETAIL GOODS ESTABLISHMENT THAT:

(I) IS ENGAGED IN THE RETAIL SALE OR ON-SITE CONSUMPTION OF TOBACCO PRODUCTS, TOBACCO SMOKING ACCESSORIES, ANY DEVICE OR PARAPHERNALIA THAT CAN BE USED TO DELIVER NICOTINE OR OTHER SUBSTANCES TO THE INDIVIDUAL INHALING FROM THE DEVICE, OR ANY CARTRIDGE, COMPONENT, OR ACCESSORY OF THE DEVICE; AND

(II) OPERATES UNDER 1 OR MORE OF THE FOLLOWING LICENSES ESTABLISHED BY THE STATE BUSINESS REGULATION ARTICLE:

(A) OTHER TOBACCO PRODUCTS (OTP) RETAILER, AS ESTABLISHED BY § 16.5-201 {"LICENSES REQUIRED RELATING TO TOBACCO PRODUCTS"};

(B) ELECTRONIC SMOKING DEVICES RETAILER, AS ESTABLISHED BY § 16.7-201 {"LICENSE REQUIRED"};

(C) VAPE SHOP VENDOR, AS ESTABLISHED BY § 16.7-201 {"LICENSE REQUIRED"};

(D) A CIGARETTE RETAILER, AS ESTABLISHED BY SUBTITLE 2 OF TITLE 16 {"CIGARETTE BUSINESS LICENSES"}; OR

(E) A TOBACCONIST LICENSE, AS ESTABLISHED BY § 16.5-201 {"LICENSES REQUIRED RELATING TO TOBACCO PRODUCTS"} OF THE STATE BUSINESS REGULATION ARTICLE; AND

(III) DEVOTES MORE THAN 10 LINEAR FEET OF DISPLAY AREA, MEASURED BY SHELF SPACE, COUNTER SPACE, AND WALL-MOUNTED DISPLAYS, WHETHER VERTICAL OR HORIZONTAL, TO:

(A) OTHER TOBACCO PRODUCTS, AS DEFINED BY § 16.5-101(J) OF THE STATE BUSINESS REGULATION ARTICLE;

(B) ELECTRONIC SMOKING DEVICES, AS DEFINED BY § 16.7-101(C) OF THE STATE BUSINESS REGULATION ARTICLE; OR

(C) A COMBINATION OF BOTH TOBACCO PRODUCTS AND ELECTRONIC SMOKING DEVICES.

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(2) EXCLUSIONS.

"SMOKE SHOP" DOES NOT INCLUDE A RETAIL GOODS ESTABLISHMENT:

(I) THAT PRIMARILY DERIVES ITS REVENUE FROM THE SALE OF PREMIUM CIGARS, PIPE TOBACCO, MEMBERSHIP FEES, OR LOCKER RENTALS; OR

(II) WHERE THE SALE OF TOBACCO PRODUCTS IS SECONDARY TO THE ESTABLISHMENT'S PRIMARY RETAIL FUNCTION AND LESS THAN 25% OF THE ESTABLISHMENT'S REVENUE IS DERIVED FROM THE SALE OF TOBACCO PRODUCTS.

Title 14. Use Standards

Subtitle 3. Use Standards

§ 14-337. SMOKE SHOPS.

A SMOKE SHOP MAY NOT BE LOCATED:

(1) WITHIN ~~500~~ 750 FEET OF ANY SCHOOL, RECREATION CENTER, OR PARK; ~~AND OR~~

(2) WITHIN ~~1,500~~ 750 FEET FROM ANOTHER SMOKE SHOP.

Title 15. Site Development Standards

Subtitle 3. Measurement Methodologies

§ 15-305. MEASUREMENT OF DISTANCE BETWEEN PROPERTIES.

IN DETERMINING THE DISTANCE BETWEEN PROPERTIES, THE MEASUREMENT SHALL BE CALCULATED USING THE SHORTEST SEPARATION BETWEEN THE PROPERTY BOUNDARY LINES.

Title 18. Nonconformities

Subtitle 7. Mandatory Termination of Certain Uses

§ 18-702. SMOKE SHOPS.

(A) IN GENERAL.

EXCEPT AS PROVIDED IN SUBSECTION (B) OF THIS SECTION, SMOKE SHOPS LOCATED WITHIN 750 FEET OF ANY SCHOOL, RECREATION CENTER, OR PARK SHALL BE TERMINATED NO LATER THAN 2 YEARS AFTER THE DATE ON WHICH THE USE BECAME NONCONFORMING.

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1 (B) WAIVER FOR HARDSHIP.

2 (1) BOARD AUTHORITY.

3 THE BOARD OF MUNICIPAL AND ZONING APPEALS MAY EXTEND BY AN
4 ADDITIONAL 1 YEAR THE TIME BY WHICH A SMOKE SHOP MUST TERMINATE THE
5 NONCONFORMING USE.

6 (2) TIMELY APPLICATION.

7 TO OBTAIN AN EXTENSION, THE PROPERTY OWNER OR LESSEE SHALL APPLY TO
8 THE BOARD, IN WRITING, WITHIN 1 YEAR AFTER THE PROPERTY BECOMES
9 NONCONFORMING.

10 (3) FACTORS FOR EXTENSION.

11 THE PROPERTY OWNER OR LESSEE SEEKING AN EXTENSION UNDER PARAGRAPH
12 (2) OF THIS SUBSECTION SHALL ESTABLISH THE EXISTENCE OF 1 OF THE
13 FOLLOWING FACTORS THAT WOULD RENDER TERMINATION WITHIN THE TIME
14 REQUIRED BY SUBSECTION (A) OF THIS SECTION A HARDSHIP:

15 (i) PURCHASE OF THE PROPERTY WITHIN THE 3 YEARS IMMEDIATELY
16 PRECEDING THE NONCONFORMITY;

17 (ii) INVESTMENT IN CAPITAL IMPROVEMENTS TO THE PROPERTY IN EXCESS OF
18 \$100,000 BEFORE JUNE 30, 2025, AND AFTER APRIL 1, 2021; OR

19 (iii) A LEASE THAT WAS ENTERED INTO BEFORE APRIL 1, 2021, HAS A
20 TERM REMAINING IN EXCESS OF 10 YEARS, AND IS NOT TERMINABLE BY
21 THE LESSEE BECAUSE OF ZONING CHANGES PROHIBITING THE USE.

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Zoning Tables

Table 7-202: Open-Space Districts – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>	<i>Use Standards</i>
	OS	
Open-Space		
...		
Park or Playground	P	
Urban Agriculture	CB	Per § [14-339] 14-340
Zoo	CB	
...		
Other		
...		
Parking Lot (Accessory Use)	CO	Per § 14-331
Telecommunications Facility	CB	Per § [14-338] 14-339
Utilities	CB	Per § [14-340] 14-341
Wireless Communications Services ¹	CB, P	Per § [14-338] 14-339

¹ Only Wireless Communication Services that are modifications to and do not substantially change the physical dimension of an existing telecommunications facility, are considered permitted uses.

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**Table 8-301: Detached and Semi-Detached Residential Districts –
Permitted and Conditional Uses**

<i>Uses</i>	<i>Districts</i>									<i>Use Standards</i>
	R-1A	R-1B	R-1C	R-1D	R-1E	R-1	R-2	R-3	R-4	
Open Space										
...										
Park or Playground	P	P	P	P	P	P	P	P	P	
Urban Agriculture	CB	CB	CB	CB	CB	CB	CB	CB	CB	Per § [14-339] 14-340
...										
Other										
...										
Electric Substation: Enclosed, Indoor, or Outdoor	CB	CB	CB	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Telecommunica- tions Facility	CB	CB	CB	CB	CB	CB	CB	CB	CB	Per § [14-338] 14-339
Utilities	CB	CB	CB	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Wireless Communications Services ²	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

¹ A Community-Based Alternative Energy System: (i) if on a lot less than 0.5 acre in lot area, requires conditional-use approval by the Zoning Board, and (ii) if on a lot 0.5 acres or more in lot area, is a permitted use.

² Only Wireless Communication Services that are modifications to – and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

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**Table 9-301: Rowhouse and Multi-Family Residential
Districts – Permitted and Conditional Uses**

<i>Uses</i>	<i>Districts</i>						<i>Use Standards</i>
	R-5	R-6	R-7	R-8	R-9	R-10	
Open-Space							
....							
Park or Playground	P	P	P	P	P	P	
Urban Agriculture	CB	CB	CB	CB	CB	CB	Per § [14-339] 14-340
....							
Other							
Alternative Energy System: Community- Based ¹	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § 14-306
Electric Substation: Enclosed, Indoor, or Outdoor	CB	CB	CB	CB	CB	CB	Per § [14-340] 14- 341
Parking Garage (Principal Use)	CO	CO	CO	CO	CO	CO	Per § 14-331
Parking Lot (Principal Use)	CO	CO	CO	CO	CO	CO	Per § 14-331
Telecommunications Facility	CB	CB	CB	CB	CB	CB	Per § [14-338] 14-339
Utilities	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Wireless Communications Services ²	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

¹ A Community-Based Alternative Energy System: (i) if on a lot less than 0.5 acre in lot area, requires conditional-use approval by the Zoning Board, and (ii) if on a lot 0.5 acres or more in lot area, is a permitted use.

² Only Wireless Communication Services that are modifications to and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

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Table 10-301: Commercial Districts – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>							<i>Use Standards</i>
	C-1	C-1-VC	C-1-E	C-2	C-3	C-4	C-5	
Open-Space								
...								
Marina: Recreational				CB	CB	P	P	Per § 14-323
Urban Agriculture	CB	CB	CB	CB	CB	CB	CB	Per § [14-339] 14-340
Commercial								
...								
Greenhouse or Nursery	P	P	P	P	P	P	P	Per § [14-339] 14-340
...								
Retail Goods Establishment (With Alcoholic Beverages Sales)	CO	CO	CO	CO	CO	P	P	Per § 14-336
SMOKE SHOP	CB	CB	CB	CB	CB	CB	CB	PER § 14-337
Stadium						CB	CB	
Tavern	CB	CB	P	P	P	P	P	Per § [14-337] 14-338
...								
Other								
Alternative Energy System: Community-Based	P	P	P	P	P	P	P	Per § 14-306
Electric Substation: Enclosed	CB	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Electric Substation: Indoor	P	P	P	P	P	P	P	Per § [14-340] 14-341

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<i>Uses</i>	<i>Districts</i>							<i>Use Standards</i>
	C-1	C-1-VC	C-1-E	C-2	C-3	C-4	C-5	
Electric Substation: Outdoor	CB	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Parking Garage (Principal Use)				CB	P	P	CB ²	Per § 14-331
Parking Lot (Principal Use)	CB	CB	CB	CB	P	P	CO	Per § 14-331
Telecommunications Facility ³	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339
Utilities	CB	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Wireless Communications Services ⁴	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

¹ Allowed only in a structure lawfully existing as of June 5, 2017.

² However, along Pratt Street in the C-5 District, principal-use parking garages are prohibited. See § 10-503(c)(1)

³ Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

⁴ Only Wireless Communication Services that are modifications to and do not substantially change the physical dimension of an existing telecommunications facility, are considered permitted uses.

⁵ Under § 14-329(a)(1) and (a)(2), both outdoor dining and rooftop dining, respectively, require approval as a conditional use by the Board of Municipal and Zoning Appeals if located in a C-1, C-1-E, C-1-VC, or C-2 zoning district.

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Table 11-301: Industrial Districts – Permitted and Conditional Uses

Uses	Districts							Use Standards
	OIC	BSC	IMU-1	IMU-2	I-1	I-2	MI	
Open-Space								
...								
Park or Playground	P	P	P					
Urban Agriculture	P	P	P	P	P			Per § [14-339] 14-340
Commercial								
...								
Greenhouse		P	P	P	P			Per § [14-339] 14-340
...								
Nursery		P	P	P	P			Per § [14-339] 14-340
...								
Retail Goods Establishment (With Alcoholic Beverages Sales)		P	CO	P	CB			Per § 14-336
Tavern				P	P	P		Per § [14-337] 14-338
...								
Other								
...								
Electric Substation: Enclosed or Indoor	P	P	P	P	P	P	P	Per § [14-340] 14-341
Electric Substation: Outdoor	CB	CB	CB	CB	CB	P	P	Per § [14-340] 14-341
Parking Garage (Principal Use)	P	P	CO	CB	P	P	P	Per § 14-331

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<i>Uses</i>	<i>Districts</i>							<i>Use Standards</i>
	OIC	BSC	IMU-1	IMU-2	I-1	I-2	MI	
Parking Lot (Principal Use)	P	P	CO	CB	P	P	P	Per § 14-331
Telecommunications Facility ¹	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339
Utilities	CB	CB	CB	CB	CB	CB	CB	Per § [14-340] 14-341
Wireless Communications Services ³	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

¹ Allowed only when (i) accessory to an office structure, research and development facility, or industrial use, and (ii) integrated into that structure, facility, or use to serve its employees.

² Allowed only when secondary to a primary industrial use.

³ Office uses legally established as of the effective date of this Code are deemed conforming and are not required to be secondary to a primary industrial use.

⁴ Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

⁵ Only Wireless Communication Services that are modifications to – and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

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Table 12-301: Office-Residential Districts – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>	<i>Use Standards</i>
	OR	
Open-Space		
....		
Park or Playground	P	
Urban Agriculture	CB	Per § [14-339] 14-340
....		
Other		
Electric Substation: Enclosed, Indoor, or Outdoor	CB	Per § [14-340] 14-341
Parking Garage (Principal Use)	CB	Per § 14-331
Parking Lot (Principal Use)	CB	Per § 14-331
Telecommunications Facility ²	CB, P	Per § [14-338] 14-339
Utilities	CB	Per § [14-340] 14-341
Wireless Communications Services ³	CB, P	Per § [14-338] 14-339

¹ [Thes] THESE are permitted uses only if: (i) the structure has 50 or more dwelling units; and (ii) non-residential uses are limited to 10% of the structure's gross floor area.

² Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

³ Only Wireless Communication Services that are modifications to – and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

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Table 12-402: Transit-Oriented Development – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>				<i>Use Standards</i>
	TOD-1	TOD-2	TOD-3	TOD-4	
.....					
Commercial					
.....					
Retail Goods Establishment (With Alcoholic Beverages Sales)		P		P	Per § 14-336
Tavern	CB	P	CB	P	Per § [14-337] 14-338
Other					
Electric Substation: Enclosed, Indoor, or Outdoor	CB	CB	CB	CB	Per § [14-340] 14-341
Parking Garage (Principal Use)	CB	CB	CB	CB	Per § 14-331
Parking Lot (Principal Use)	CB	CB	CB	CB	Per § 14-331
Telecommunications Facility ³	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339
Utilities	CB	CB	CB	CB	Per § [14-340] 14-341
Wireless Communications Services ⁴	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

¹No recreation facilities are allowed, except for standard playground equipment and outdoor furniture.

²Not to exceed 5,000 sq. ft. of the structure's gross floor area.

³Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

⁴Only Wireless Communication Services that are modifications to – and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

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Table 12-501: Educational Campus Districts – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>		<i>Use Standards</i>
	EC-1	EC-2	
...			
Open-Space			
...			
Park or Playground	P	P	
Urban Agriculture	P	P	Per § [14-339] 14-340
...			
Other			
Electric Substation: Enclosed, Indoor, or Outdoor	CB	CB	Per § 14-340
Parking Garage (Principal Use)	P	P	Per § 14-331
Parking Lot (Principal Use)	P	P	Per § 14-331
Telecommunications Facility ¹	CB, P	CB, P	Per § 14-338
Utilities	CB	CB	Per § 14-340
Wireless Communications Services ²	CB, P	CB, P	Per § 14-338

¹ Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

² Only Wireless Communication Services that are modifications to and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

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Table 12-601: Hospital Campus Districts – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>	<i>Use Standards</i>
	H	
Other		
Electric Substation: Enclosed, Indoor, or Outdoor	CB	Per § [14-340] 14-341
Parking Garage (Principal Use)	P	Per § 14-331
Parking Lot (Principal Use)	P	Per § 14-331
Telecommunications Facility ¹	CB, P	Per § [14-338] 14-339
Utilities	CB	Per § [14-340] 14-341
Wireless Communications Services ²	CB, P	Per § [14-338] 14-339

¹ Only telecommunications base stations that comply with the stealth design standards of § 14-338 are considered permitted uses.

² Only Wireless Communication Services that are modifications to and do not substantially change the physical dimension of an existing telecommunications facility, are considered permitted uses.

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Table 12-1302: Port Covington District – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>				<i>Use Standards</i>
	PC-1	PC-2	PC-3	PC-4	
...					
Open-Space					
...					
Recreational Boat Launch	P	P	P	P	
Urban Agriculture	P	P	P	P	Per § [14-339] 14-340
Zoo	CB	CB	CB		
Commercial					
Funeral Home	P	P	P	P	
Greenhouse or Nursery	P	P	P	P	Per § [14-339] 14-340
Health-Care Clinic		P	P	P	
...					
Stadium	P	P	P	P	
Tavern	P	P	P	P	Per § [14-337] 14-338
Video Lottery Facility		P	P		
...					
Other					
Alternative Energy System: Community-Based	P	P	P	P	Per § 14-306
Electric Substation: Enclosed, Indoor, or Outdoor	CB	CB	CB	CB	Per § [14-340] 14-341
Parking Garage (Principal Use)		P	P	P	Per § 14-331
Parking Lot (Principal Use)		P	P	P	Per § 14-331

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<i>Uses</i>	<i>Districts</i>				<i>Use Standards</i>
	PC-1	PC-2	PC-3	PC-4	
Telecommunications Facility ²	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339
Utilities	CB	CB	CB	CB	Per § [14-340] 14-341
Wireless Communications Services ³	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

¹ Subject to conformance with the Marina Master Plan.

² Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

³ Only Wireless Communication Services that are modifications to – and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

Table 12-1403: Harford Road Overlay District – Office, Commercial, and Industrial Districts – Permitted and Conditional Uses

<i>Uses</i>	<i>Districts</i>					<i>Use Standards</i>
	OR-1	C-1	C-2	C-3	IMU-1	
...						
Open-Space ¹						
...						
Park or Playground	P	P	P	P		
Urban Agriculture	CB	CB	CB	CB	P	Per § [14-339] 14-340
Commercial						
...						
Financial Institution		P	P	P	P	
Greenhouse or Nursery		P	P	P	P	Per § [14-339] 14-340

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<i>Uses</i>	<i>Districts</i>					<i>Use Standards</i>
	OR-1	C-1	C-2	C-3	IMU-1	
1 Health-Care Clinic	P		P	P	P	
2 ...						
3 Retail Goods 4 Establishment (With 5 Alcoholic Beverages 6 Sales)		P	P	P	P	Per § 14-336
7 Tavern	P	P	P	P	P	Per § [14-337] 14-338
8 ...						
9 Other						
10 Alternative Energy 11 System: 12 Community-Based		P	P	P	P	Per § 14-306
13 Electric Substation: 14 Enclosed, Indoor, or 15 Outdoor	CB	CB	CB	CB	CB	Per § [14-340] 14-341
16 Telecommunications 17 Facility ¹	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339
18 Utilities	CB	CB	CB	CB	CB	Per § [14-340] 14-341
20 Wireless 21 Communications 22 Services ²	CB, P	CB, P	CB, P	CB, P	CB, P	Per § [14-338] 14-339

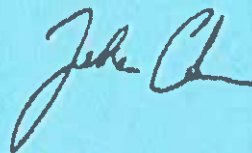
¹ Only telecommunications base stations that comply with the stealth design standards of § [14-338] 14-339 are considered permitted uses.

² Only Wireless Communication Services that are modifications to – and do not substantially change the physical dimension of – an existing telecommunications facility, are considered permitted uses.

SECTION 3. AND BE IT FURTHER ORDAINED, That this Ordinance takes effect on the 30th day after the date it is enacted.

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Certified as duly passed this 11th day of May, 2026



President, Baltimore City Council

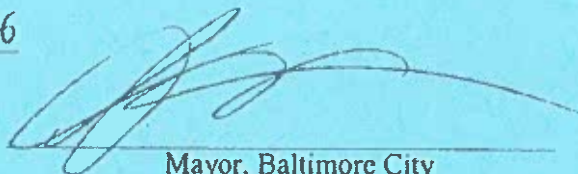
Certified as duly delivered to His Honor, the Mayor,

this 13th day of May, 2026



Chief Clerk

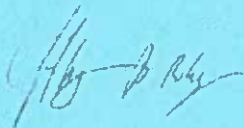
Approved this 16 day of June, 2026



Mayor, Baltimore City

Approved for Form and Legal Sufficiency.

this 13th day of May, 2026



Chief Solicitor